

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

----- X

EARL JOHNSON and SEDRICK BLOOME,

Plaintiffs,

09 CV 3534 (DLI) (JMA)

-against-

THE CITY OF NEW YORK, WALIUR RAHMAN,
and JOHN DOES 1-5,

**SECOND
AMENDED COMPLAINT**

Defendants.

----- X

Plaintiffs Earl Johnson and Sedrick Bloome, by their attorneys, Reibman & Weiner, as and for their Second Amended Complaint, hereby allege as follows, upon information and belief:

PARTIES, VENUE and JURISDICTION

1. At all times hereinafter mentioned, plaintiff Earl Johnson, an adult black male, was a resident of the County of Kings, City and State of New York.
2. At all times hereinafter mentioned, plaintiff Sedrick Bloome, an adult black male, resident of the County of Kings, City and State of New York.
3. At all relevant times hereinafter mentioned, defendant City of New York ("New York City"), was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York and acts by and through its agencies, employees and agents, including, but not limited to, the New York City Police Department ("NYPD").
4. At all relevant times hereinafter mentioned, defendant Waliur Rahman, whose tax registry number is 907113, was at all relevant times herein employed by New York City as a member of the NYPD, who was hired, trained and supervised by the defendant

municipality, and is being sued herein in both his official and individual capacities.

5. At all relevant times hereinafter mentioned, defendants John Does 1 through 5 were at all relevant times herein employed by the New York City as members of the NYPD, who were hired, trained and supervised by the defendant municipality, and are sued in both their official and individual capacities.

6. At all relevant times herein, each of the individual defendants, including the Doe defendants, were state actors acting in the course of their employment with the NYPD under color of law.

7. Original jurisdiction of this Court is founded upon 28 U.S.C. §§ 1331, *et seq.*, and 42 U.S.C. §§ 1981 and 1983. The Court has jurisdiction over the state claims under the legal principles of supplemental jurisdiction.

8. Venue is properly laid in this District pursuant to 28 U.S.C. §1391, *et seq.*, because all of the events complained of herein occurred within the Eastern District of New York, and because it is the district of residence for the parties.

9. A Notice of Claim was timely served by plaintiffs upon the defendant City of New York.

10. At least thirty days have passed since plaintiffs' service of his Notice of Claim, and adjustment and payment thereof has been neglected or refused by the City of New York.

11. Plaintiff Johnson has complied with all of obligations, requirements and conditions precedent to commencing an action against New York City under New York law.

RELEVANT FACTS

12. On or about May 16, 2008, at or between 8:20 and 9:00 p.m., plaintiffs

were lawfully present inside the premises of 72 Rogers Avenue (“the Premises”) as an invited guest.

13. The Premises is understood to be a privately owned building that consists, in relevant part, of a bar or social club.

14. On May 16, 2008, at or between 8:20 and 9:00 p.m., various members of law enforcement, including defendant Rahman and the Doe defendants (collectively the “individual defendants”), physically forced their way into the Premises.

15. The defendants, while inside the Premises, seized plaintiffs at gunpoint, forced them to the floor, and then handcuffed and placed them under arrest.

16. At no time did the defendants have adequate legal cause to detain, seize or arrest plaintiffs, nor could defendants have reasonably believed that such cause existed.

17. The plaintiffs were detained at the Premises for a period of time and then transported to a local NYPD Precinct station house for processing. While at the station house, the plaintiffs was fingerprinted, photographed, and searched.

18. Plaintiffs were eventually transported to Central Booking in Kings County, where they were imprisoned for a period of many hours.

19. With respect to plaintiff Johnson, after more than 24 hours had passed since his arrest, the Kings County District Attorney elected to decline his prosecution. Eventually, plaintiff was summarily released from Central Booking without ever being criminally charged.

20. With respect to defendant Bloome, defendant Rahman repeatedly claimed, orally and in writing, in part, that he personally found Mr. Bloome in physical possession of narcotics; and that Mr. Bloome admitted to him that he work at the Premises.

21. These factual allegations by Rahman were materially false, and Rahman knew them to be false at the time he first made them, and at every time thereafter when he repeated them.

22. As a direct result of these allegations by Rahman, plaintiff was subjected to criminal prosecution.

23. On or about July 24, 2008, Rahman gave testimony before a grand jury in which he testified again that he had personal knowledge that Mr. Bloome was in possession of narcotics at the time of his arrest, and that Mr. Bloome admitted to working at the Premises.

24. The testimony given by Rahman before the grand jury was materially false and Rahman knew it to be false at the he gave said testimony.

25. As a direct result of the materially false testimony provided by Rahman, the grand jury returned an indictment against Mr. Bloome, under indictment number 5004/2008, charging plaintiff with multiple narcotics charges and one gambling charge.

26. On December 3, 2009, the criminal prosecution against plaintiff was dismissed in all regards and the action favorably terminated.

27. On or about May 22, 2008, as a direct result of his arrest and prosecution, the New York City Transit Authority suspended Mr. Bloome without pay from his full-time position as a Track Worker. As of the date of this pleading, Mr. Bloome has not been permitted to return to work.

28. At all times relevant herein, each of the individual defendants, including all of the John Doe defendants, were acting within the scope of their employment with the NYPD and the City of New York, and their acts were done in furtherance of the City of New York's interests and without legal justification or excuse.

FIRST CAUSE OF ACTION

29. Plaintiffs repeat the allegations contained in paragraphs "1" through "28" above as though stated fully herein.

30. Defendants willfully and intentionally seized, searched, arrested, and imprisoned plaintiffs without probable cause, and without a reasonable basis to believe such cause existed. Defendants further caused plaintiff Bloome to be maliciously prosecuted to a search without sufficient cause.

31. By so doing, defendants caused plaintiffs to be deprived of due process, and subjected to false arrest and imprisonment, unlawful searches of person and property, and, in the case of Mr. Bloome, malicious prosecution, and thereby violated, conspired to violate, and aided and abetted in the violation of plaintiffs' rights under the Fourth and Fourteenth Amendments of the United States Constitution.

32. By reason thereof, the individual defendants have violated 42 U.S.C. §1983 and caused plaintiffs to suffer economic, emotional and physical injuries, mental anguish, the loss of their constitutional rights, and unlawful incarceration.

SECOND CAUSE OF ACTION

33. Plaintiffs repeat the allegations contained in paragraphs "1" through "32" above as though stated fully herein.

34. Defendant City of New York was on notice that on and prior to the date of plaintiff's arrest, NYPD officers within the Brooklyn North Narcotics Bureau, and defendant Rahman, were routinely engaging in arrests and detentions, without legal justification in violation of state and federal constitutional provisions, as well as the express language of the

Patrol Guide, in or around so called "social clubs", and that as a result of the conduct of various members of the NYPD, particularly in Kings County, many people were wrongly arrested, detained for days, and then either summarily released, or prosecuted for a period of months before obtaining favorable dismissals.

35. The defendant City of New York deliberately and intentionally chose not to take action to correct this chronic, systemic and institutional misuse and abuse of strip searches, arrests and detentions, by these officers, including Rahman, and thereby deliberately and intentionally adopted, condoned, and otherwise created through deliberate inaction and negligent supervision, an NYPD policy, practice and custom of utilizing illegal and impermissible strip searches, arrests and detentions, in the ordinary course of NYPD business in flagrant disregard of the state and federal constitutions, up to and beyond the date of plaintiffs' arrest.

36. By reason thereof, the municipal defendant has violated 42 U.S.C. §1983 and caused plaintiffs to suffer economic, emotional and physical injuries, mental anguish, the loss of their constitutional rights, and unlawful incarceration.

THIRD CAUSE OF ACTION

37. Plaintiff Johnson repeats the allegations contained in paragraphs "1" through "36" above as though stated fully herein.

38. Plaintiff was intentionally, willfully, maliciously and/or with reckless disregard, seized, arrested, held in custody, and searched by defendants against his will.

39. At no time did defendants have probable cause, legal justification, authority, or any colorable legal basis for seizing, arresting, imprisoning or searching plaintiff,

and said detention, of which plaintiff was conscious, was unlawful.

40. Regardless of whether defendants had a lawful basis to briefly detain plaintiff at the time of his initial seizure, at no time prior to or during the unlawful detention did defendants have sufficient legal cause, justification or any colorable legal basis to continue to detain plaintiffs beyond an initial inquiry, and said detention and searches were unlawful.

41. Defendants are liable for falsely arresting, imprisoning, and searching and searching plaintiff.

42. By reason thereof, defendants have caused plaintiff to suffer loss of liberty, humiliation and embarrassment, emotional and physical suffering, and mental anguish.

FOURTH CAUSE OF ACTION

43. Plaintiff Johnson repeats the allegations contained in paragraphs "1" through "42" above as though stated fully herein.

44. By their actions described herein, defendants acted intentionally and with malice aforethought to cause plaintiff extreme emotional disturbance.

45. The actions of defendants described herein were outrageous and designed only to harm plaintiff.

46. By reason thereof, plaintiff has suffered damages including but not limited to emotional and psychological injuries.

DEMAND FOR A JURY TRIAL

Pursuant to Fed. R. Civ. P. 38, plaintiffs hereby demands a jury trial of all issues capable of being determined by a jury.

WHEREFORE, the plaintiffs demands judgment against defendants jointly and severally as follows:

- i. on the first cause of action actual and punitive damages in an amount to be determined at trial;
- ii. on the second cause of action actual and punitive damages in an amount to be determined at trial;
- iii. on the third cause of action actual and punitive damages in an amount to be determined at trial;
- iv. on the fourth cause of action actual and punitive damages in an amount to be determined at trial;
- v. statutory attorney's fees pursuant to, *inter alia*, 42 U.S.C. §1988 and New York common law, disbursements, and costs of this action; and
- vi. such other relief as the Court deems just and proper.

Dated: Brooklyn, New York
April 2, 2010

REIBMAN & WEINER

/s/

By: _____
Michael B. Lumer (ML-1947)
Attorneys for Plaintiff
26 Court Street, Suite 1005
Brooklyn, New York 11242
(718) 522-1743